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S.I. No. 324/1976 - European Space Agency (Privileges and Immunities) Order, 1976.

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EUROPEAN SPACE AGENCY (PRIVILEGES AND IMMUNITIES) ORDER, 1976.

WHEREAS it is enacted by section 42A of the Diplomatic Relations and Immunities Act, 1967 (No. 8 of 1967), as amended by the Diplomatic Relations and Immunities (Amendment) Act, 1976 (No. 2 of 1976), that the Government may by order make provision to enable international organisations, communities or bodies, their institutions or organs and their property, and persons to have and enjoy in the State any inviolability, exemptions, facilities, immunities, privileges or rights provided for in relation to them by an international agreement to which the State is or intends to become a party:

AND WHEREAS the agreement made between the Government and the European Space Agency and signed on behalf of the Government and the European Space Agency on the 29th day of November, 1976, is such an agreement:

NOW, the Government, in exercise of the powers conferred on them by section 42A of the said Diplomatic Relations and Immunities Act, 1967, as amended by the said Diplomatic Relations and Immunities (Amendment) Act, 1976, hereby order as follows:

1. This Order may be cited as the European Space Agency (Privileges and Immunities) Order, 1976.
2. Article 6 of the Agreement between the Government and the European Space Agency signed on behalf of the Government and the European Space Agency on the 29th day of November, 1976 (a copy of which is set out in the Schedule hereto), shall apply for the purposes of section 42A of the Diplomatic Relations and Immunities Act, 1967, as amended by the Diplomatic Relations and Immunities (Amendment) Act, 1976.

SCHEDULE.

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Agreement between the Government and the European Space Agency.

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Article 6.

1. The Agency shall have the legal capacity of a body corporate in Ireland.
2. Goods imported or exported by the Agency and its contractors and strictly necessary for the exercise of its official activities shall be exempt from all customs dues and other taxes or charges and from all import and export prohibitions and restrictions.
3. The Agency and its contractors shall be entitled to remission or reimbursement of the amount of duties and taxes levied on major purchases made by the Agency and its contractors and strictly necessary for the exercise of the official activities of the Agency.
4. The Agency its property and income shall be exempt from direct taxes.
5. Salaries and emoluments paid by the Agency to members of its staff shall be exempt from national income tax.

GIVEN under the Official Seal of the Government, this 7th

day of December, 1976.

LIAM MAC COSGAIR.

EXPLANATORY NOTE.

The purpose of this order is to confer the status of a body corporate on the European Space Agency and to give effect to the provisions relating to privileges and immunities contained in the Agreement between the Government of Ireland and the European Space Agency, 29th November, 1976.

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